

SENATE No. 369

The Commonwealth of Massachusetts

PRESENTED BY:

Adam Gómez

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to establish the Whole Child Grant Program.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Adam Gómez</i>	<i>Hampden</i>	
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>2/1/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>2/1/2025</i>
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>2/1/2025</i>
<i>Jacob R. Oliveira</i>	<i>Hampden, Hampshire and Worcester</i>	<i>2/11/2025</i>
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>2/12/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>2/20/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>3/5/2025</i>
<i>Susannah M. Whipps</i>	<i>2nd Franklin</i>	<i>3/24/2025</i>
<i>Paul W. Mark</i>	<i>Berkshire, Hampden, Franklin and Hampshire</i>	<i>4/1/2025</i>
<i>Angelo J. Puppolo, Jr.</i>	<i>12th Hampden</i>	<i>4/1/2025</i>
<i>Adam J. Scanlon</i>	<i>14th Bristol</i>	<i>4/9/2025</i>
<i>Sal N. DiDomenico</i>	<i>Middlesex and Suffolk</i>	<i>4/17/2025</i>
<i>Pavel M. Payano</i>	<i>First Essex</i>	<i>6/25/2025</i>

SENATE No. 369

By Mr. Gomez, a petition (accompanied by bill, Senate, No. 369) of Adam Gomez, Joanne M. Comerford, Vanna Howard, Michael D. Brady and other members of the General Court for legislation to establish the Whole Child Grant Program. Education.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to establish the Whole Child Grant Program.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 29 of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by inserting after section 2AAAAAA the following section:-

3 SectionBBBBB. Whole Child Grant Program Fund

4 (a) There is hereby established and set up on the books of the commonwealth a separate
5 fund, to be administered by the department of elementary and secondary education, which shall
6 be known as the Whole Child Grant Program Fund. The fund shall be credited with: (i)
7 appropriations, bond proceeds or other money authorized or transferred by the general court and
8 specifically designated to be credited to the fund; (ii) funds from public and private sources,
9 including, but not limited to gifts, grants and donations; and (iii) any interest earned on such
10 money. Amounts credited to the fund shall not be subject to further appropriation and any money
11 remaining in the fund at the end of a fiscal year shall not revert to the General Fund and shall
12 remain available for purposes pursuant to paragraph (b) of this section.

(b) Amounts credited to the fund shall be used, without further appropriation, to administer and fund the Whole Child Grant Program established pursuant to section 100 of chapter 71 of the general laws. If the funds in this account are insufficient to fully fund the grant, the department of elementary and secondary education shall submit to the house and senate committees on ways and means a request for an additional appropriation to fully fund the grant.

(c) Annually, not later than October 1, the department of elementary and secondary education shall report to the clerks of the house of representatives and the senate, the joint committee on education and the house and senate committees on ways and means on the fund's activities. The report shall include, but not be limited to: (i) the source and amount of funds received; (ii) the expenditures made from the fund; and (iii) the anticipated funding obligation for the next fiscal year. The report shall be publicly available on the department's website.

SECTION 2. Chapter 71 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting, after section 99, the following new section:-

Section 100.

(a) The department shall, subject to appropriation, establish and administer a grant program, to be known as the Whole Child Grant Program, for the purpose of providing public school districts, as defined in Section 2 of chapter 70 of the general laws, with funds to support the social, emotional and physical wellbeing of students and educators.

(b) The department shall, subject to the approval of the board, promulgate regulations governing the grant program. The regulations shall include, but not be limited to, the following provisions:

(1) Eligible uses of grant funds shall include, but, not be limited to, the following: (i) hiring one or more school nurses to meet the Department of Public Health School Health Services Unit school nurse staffing recommendations and completing an assessment of the health care needs of the student population pursuant to Department of Public Health School Health Services Unit recommendations; (ii) adopting the Massachusetts Model 3.0: A Framework for Comprehensive School Counseling Programs and hiring one or more school counselors certified under section 38G of this chapter to meet a school counselor staffing recommendation which shall be developed by the department and take into account the American School Counselor Association recommendation of at least one full-time school counselor for every 250 students; (iii) hiring one or more school adjustment counselors certified under section 38G of this chapter to meet a school adjustment counselor staffing recommendation which shall be developed by the department; (iv) hiring one or more licensed social workers certified under section 38G of this chapter to meet a school social worker staffing recommendation which shall be developed by the department and take into account the National Association of Social Workers recommendation of at least one school social worker for every 250 students; (v) hiring one or more school psychologists certified under section 38G of this chapter to meet the National Association of School Psychologists recommendation of at least one full-time school psychologist for every 500 students; (vi) hiring other school personnel that directly support the academic, social, emotional and physical wellbeing of students including, but not limited to, education support professionals; (vii) implementing elements of the statewide birth through higher education framework for mental and behavioral health established pursuant to chapter 140 of the acts of 2024; (viii) developing and implementing policies and programs to ensure the academic, social, emotional and physical wellbeing and safety of students and educators; (ix) providing ongoing, specialized,

relevant, and research-based professional development opportunities to educators, including administrators, that are specific to the role for which they are hired and that foster the development of trauma-sensitive environments for students and educators; (x) developing and implementing policies related to student access to cell phones, other technological devices and social media during the school day and on school grounds; and (xi) recruitment and retention programs to support the hiring of school personnel pursuant to clauses i-vi of this paragraph; provided, that, such recruitment and retention programs shall prioritize attracting individuals from underrepresented populations to diversify the educator workforce consistent with chapter 132 of the acts of 2019.

(2) As a condition for receiving grants under this section, the department shall require school districts to submit a plan that details how grant funds will be allocated in accordance with paragraph (1) of subsection (b) of this section. School districts shall work with employee organizations, as defined in chapter 150E of the general laws, representing employees within the school district to develop said plans and school districts shall agree to use the grant funds to supplement, not supplant, existing district funding for personnel and programs.

(3) The department shall establish and administer an annual reporting process to monitor whether a school district has met or is making reasonable progress toward the stated purpose or purposes for the grant funding that are outlined in its plan. Assuming compliance with this section, as determined by the department, grants shall be renewed annually, subject to appropriation.

(c) The department shall disburse funds to school districts on a per-pupil basis in accordance with the following formula: \$150 per pupil for districts in which 20 percent or more

79 of the students are designated as low-income, as defined in said section 2 of said chapter 70;
80 \$100 per pupil for districts in which 10 to 20 percent of students are designated as low-income,
81 as so defined; and \$50 per pupil for districts in which less than 10 percent of students are
82 designated as low-income, as so defined.